

HOUSE BILL No. 1054

DIGEST OF INTRODUCED BILL

Citations Affected: IC 25-28.5-1.

Synopsis: Plumbing noncompete agreements. Defines "noncompete agreement". Provides that a noncompete agreement entered into: (1) on or after April 1, 2026; and (2) between an employer and certain persons in the plumbing trade; is void and unenforceable.

Effective: Upon passage.

Morris, Judy, Ledbetter

December 5, 2025, read first time and referred to Committee on Employment, Labor and Pensions.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1054

A BILL FOR AN ACT to amend the Indiana Code concerning professions and occupations.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 25-28.5-1-2, AS AMENDED BY P.L.1-2006,
2 SECTION 469, IS AMENDED TO READ AS FOLLOWS
3 [EFFECTIVE UPON PASSAGE]: Sec. 2. As used in this chapter:

4 (1) "Plumbing" means the practice of and the materials and
5 fixtures used in the installation, maintenance, extension, and
6 alteration of all piping, fixtures, appliances, and appurtenances in
7 connection with any of the following:

8 (A) Sanitary drainage or storm drainage facilities, the venting
9 system, and the public or private water supply systems, within
10 or adjacent to any building or structure.

11 (B) The practice and materials used in the installation,
12 maintenance, extension, or alteration of the stormwater, liquid
13 waste, or sewerage, and water supply systems of any premises
14 to the private property line or to their connection with any
15 point of public disposal or other acceptable terminal.

16 The term does not include the planning, designing, and
17 installation of sanitation and water systems in vehicles commonly



1 known as mobile homes, the drilling of wells, the installation of
2 pumps, pressure tanks, and piping incidental to the drilling or
3 repair of a well system, the sale or installation of water softening
4 equipment and apparatuses and services of the same, or the
5 business of manufacturing or selling plumbing fixtures;
6 appliances, equipment, or hardware; the installation of automatic
7 sprinklers, the overhead or underground water supplies or
8 standpipes when connected to an automatic sprinkler system or to
9 their related devices or appurtenances connecting thereto; nor
10 does the term include the work referred to in section 32(i) of this
11 chapter; nor does the term include the planning or design of water
12 supply or sewage systems which would ordinarily be performed
13 as "the practice of engineering", as defined in IC 25-31-1, or the
14 "practice of architecture", as defined in IC 25-4-1.

15 (2) "Plumbing contractor" means any person who, for
16 compensation, undertakes to, or submits a bid to, or does himself
17 or herself or by others, construct, repair, alter, remodel, add to,
18 subtract from, or improve plumbing and who is responsible for
19 substantially all the plumbing within the entire project, or one
20 who fabricates units or plumbing substantially completed and
21 ready for installation.

22 (3) "Journeyman plumber" means a person who engages or offers
23 to engage in, as an occupation or trade, the construction,
24 installation, alteration, maintenance, repair, remodeling, or
25 removal and replacement of plumbing under the supervision,
26 direction, and responsibility of a licensed plumbing contractor.

27 (4) "Maintenance man" means a person who is employed on a
28 permanent basis to keep the premises of a business establishment
29 in good repair.

30 (5) "Contracting" means, except as exempted in this chapter,
31 engaging in a business as a contractor.

32 (6) "Person" means a natural person, except in the case of a
33 plumbing contractor, in which case it may mean the partners or
34 members of a partnership, limited partnership, or any form of
35 unincorporated enterprise, owned by two (2) or more persons, and
36 as applied to "corporation" in addition to the corporate entity
37 means the officers or directors and employees thereof.

38 (7) "Commission" means the Indiana plumbing commission
39 created by this chapter.

40 (8) "License" means a certificate issued by the commission
41 established by this chapter which confers upon the holder the
42 privilege to act as a plumbing contractor or a journeyman plumber



as defined in this chapter.

(9) "Farmstead" means a farm dwelling together with other buildings, structures, equipment, piping, and other plumbing materials and supplies, located upon a parcel of real estate used primarily for agricultural purposes located outside the corporate limits of a municipality and not connected to a public water supply.

(10) "Licensing agency" means the Indiana professional licensing agency established under IC 25-1-5-3.

(11) "Apprentice plumber" means an individual who:

(A) is learning the plumbing trade; and

(B) is under the direction and immediate supervision of a licensed plumbing contractor or a licensed journeyman plumber.

(12) "Registration" means the granting of a certificate by the commission that authorizes an individual to act as an apprentice plumber.

(13) "Noncompete agreement" means a contract, or any part of a contract, that has the purpose or effect of restricting or penalizing a person's ability to engage in the plumbing trade in any geographic area, for any period of time, after the person's employment or contract with the employer has ended. The term:

(A) includes:

(i) a nonsolicitation agreement; and

(ii) a training reimbursement agreement for persons not in a registered apprentice program; and

(B) does not include:

(i) a nondisclosure agreement protecting bona fide confidential business information; or

(ii) a scholarship loan agreement for a person in a commission approved apprenticeship program.

SECTION 2. IC 25-28.5-1-40 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: **Sec. 40. (a) A noncompete agreement that is:**

(1) entered into on or after April 1, 2026; and

(2) between:

(A) an employer (including a plumbing contractor, as applicable); and

(B) a journeyman plumber, an apprentice plumber, a pipefitter, a welder, an HVAC service technician, or any



1 person performing work that requires a license under this
2 article;
3 is void and unenforceable.
4 (b) This section shall be construed liberally to further the
5 policies of:
6 (1) promoting the mobility of journeymen plumbers,
7 apprentice plumbers, pipefitters, welders, HVAC service
8 technicians, or any person performing plumbing;
9 (2) fostering competition;
10 (3) protecting consumers; and
11 (4) ensuring that licensing does not become a barrier to
12 employment or the free exercise of the plumbing trade.
13 SECTION 3. An emergency is declared for this act.

